

Ross on Crime

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Flight

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# Flight

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## **[6.1300]** Flight

Flight is the term often used to describe the absconding of an accused to avoid arrest or to avoid going to court. Evidence of flight is capable of showing consciousness of guilt and of being corroboration.

## **[6.1305]** What is not flight

In [R v Adam \(1999\) 106 A Crim R 510](#) (NSW CCA) the court said in a joint judgment (at 523 [62]):

The evidence relied on by the Crown as being evidence of flight, that the appellant was observed walking away from the car park with his brother “at a normal pace”, being with his brother at the service station and walking back to the car park and moving his car a short distance within the car park was, in our opinion, so deficient in establishing that there was

any “flight” at all or that the reason for any flight was consciousness of his own guilt, and not consciousness of his brother's guilt, that it should not have been left to the jury as evidence of consciousness of guilt.

#### **[6.1310]**     Consciousness of guilt

On consciousness of guilt, in *R v Melrose* [1989] 1 Qd R 572; (1987) 30 A Crim R 332 (CCA) Shepherdson J said (at 579; 338–339):

[W]hen there is evidence of flight before a jury whether there be one or more than one reason advanced for that flight, the jury should be told that it is for them to decide on the whole of the evidence relevant to the charge in which evidence of flight has been admitted what inference is to be drawn from the accused person's flight but if at the end of the day they decide to infer a consciousness of guilt in the accused person for the offence alleged, they must be satisfied beyond reasonable doubt of such an inference.

Followed:

*R v Power* (1996) 87 A Crim R 407 at 409 (SA CCA);

*R v Festa* (2000) 111 A Crim R 60 at 66 [14] (Qld CA).

#### **Other cases**

*Quinlan v The Queen* (2006) 164 A Crim R 106 at 111–118 [7]–[24] (NSW CCA);

*R v Dat Quoc Ho* (2002) 130 A Crim R 545 at 554–562 [42]–[64] (NSW CCA).

*Allami v Western Australia* [2013] WASCA 230.

#### **[6.1315]**     Accused's state of mind

In *R v Nguyen* (2001) 118 A Crim R 479 (CA) Winneke P said (at 489 [20]):

The probative strength of post-offence conduct, such as concealment of weapon or flight, with or without “covering lies”, will depend upon many factors including the circumstances in which the conduct occurred and the issue in proof of which the evidence is tendered. If it is open to be used by the jury for the purpose of drawing an inference as to the state of the accused's mind at the relevant time, the conduct will have to be assessed in the light of the probabilities. But, because such evidence is capable of being misused by the jury, the interests of a fair trial to the accused require, as I think they required in this case, a careful

direction from the trial judge of the type referred to in *Edwards* (1992) 173 CLR 653; 60 A Crim R 100.

**[6.1320]** Flight during the trial

In *R v Festa* (2000) 111 A Crim R 60 (Qld CA) Ms Festa had absconded on day 12 of her trial. In a joint judgment the court said (at 66 [14]):

The fact that the appellant had absconded during the course of the trial was evidence which was capable of being regarded by the jury as suggesting a consciousness of guilt on her part. See *Melrose* [1989] 1 Qd R 572; (1987) 30 A Crim R 332, and authorities referred to there. That and most other decisions in which the matter has been considered have concerned “flight” by the accused before the trial began; but flight during trial must, if anything, afford an even firmer foundation for drawing an inference of that kind. The most obvious explanation of her disappearance was the evidence given against her at the trial appeared to be compelling and that a verdict of acquittal was unlikely. Of course, there are opposing inferences that are capable of explaining the sudden absence of an accused person from a trial which is already under way. It may be due to illness or injury or some other cause beyond control. His Honour was not obliged to canvass such possibilities with the jury. They were not so much as suggested by counsel for the appellant before he withdrew from the trial.

The appeal was *Festa v The Queen* (2001) 208 CLR 593; 185 ALR 394. McHugh J said (at 633; 425 [126]):

And on the twelfth day of the hearing she fled, giving rise to the conclusion that she was conscious of her guilt.

**[6.1325]** Alternative explanations

In *R v Smith* (1994) 73 A Crim R 384 (Vic CCA) Eames J said (at 427):

When a jury is asked by the Crown to attribute consciousness of guilt to behaviour, or alleged lies, by an accused person, the trial judge is obliged to instruct them to consider alternative explanations for that conduct which would not lead to that inference: *Edwards* (1992) 173 CLR 653; 60 A Crim R 100; *Tadic v Gibb* (unreported, Court of Criminal Appeal, Vic, 31 August 1993).

In *R v Renzella* [1997] 2 VR 88; 88 A Crim R 65 (CA) the court said (at 90–91; 68–69):

We preface this part of our judgment by setting out, in summary form, the principal points to be borne in mind:

1. Similar issues can arise in relation to conduct other than lies, such as flight or laying a false trail or bribery or attempted bribery of prosecution witnesses.

**[6.1330]** Possible direction based on Edwards

More recent authorities suggest that a direction be given based on *Edwards v The Queen* (1993) 178 CLR 193; 68 A Crim R 349; 117 ALR 600 at 211; 613; 362–363. Such direction might be:

There may be reasons for flight apart from the realization of guilt. Flight may be from panic, to escape an unjust accusation, to protect some other person or to avoid a consequence extraneous to the offence.

(Such extraneous consequences may be a pressing need to be a certain place for a specific reason or reasons. It may be illness requiring treatment or the need to be close to a dear one who does. It may be to say goodbye. It may result from a confusion that to be away is not such a serious thing.)

**See also**

**Consciousness of guilt** at [3.5900]; **Corroboration** at [3.7900]; **Edwards direction** at [5.100]; **Handcuffs** at [8.700]; **Lies** at [12.1500]; and **Zoneff direction** at [26.100].